Showing contexts for: **title dispute** in Sky Land International Pvt. Ltd. vs Kavita P Lalwani on 25 May, 2012

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"12. ...Section 116 of the Evidence Act embodies therein a rule of estoppel. No tenant of immovable property, or person claiming through such tenant, shall, during the continuance of the tenancy, be permitted to deny that the landlord of such tenant had, at the beginning of the tenancy, a **title** to such immovable property. This estoppel so long as it binds the tenant excludes the tenant from raising a plea **disputing** the **title** of his landlord at the commencement of the tenancy. It flows as a corollary therefrom that the proof of landlord-tenant relationship tantamounts during the continuance of tenancy to proof of ownership of landlord over the tenancy premises at the beginning of the tenancy so far as the tenant is concerned. It is significant to note that on the phraseology of Section 116 of the Evidence Act the rule of estoppel applies so long as the tenancy is not terminated and the rule estops the tenant from laying challenge to the ownership of the landlord at the commencement of the tenancy. But the rule of estoppel as incorporated in Section 116 is not exhaustive and it may be extended or suitably modified in its application to other situations as well, retaining the basic feature of the rule. Clause (g) of Section 111 of the Transfer of Property Act, insofar as relevant for our purpose, provides that a lease of immovable property determines by forfeiture in case the lessee renounces his character as such by setting up a **title** in a third person or by claiming **title** in himself. This provision contemplates two fact situations which entail the lessee having renounced his character as such and they are: (i) when the lessee sets up a **title** in a third person, or (ii) when he claims **title** in himself. In either case, the tenant has **disputed** and denied the **title** of his landlord because a **title** in third person or **title** in himself cannot co-exist with the **title** in the landlord.‖ "14. Denial of landlord's **title** or disclaimer of tenancy, is it an act injurious to interest of landlord? How does this rule operate and what makes it offensive? Evans and Smith state in the Law of Landlord and Tenant (4th Edn., 1993, at p.89) that it is an implied condition of every lease, fixed-term or periodic and formal or informal, that the tenant is not expressly or impliedly to deny the landlord's **title** or prejudice it by any acts which are inconsistent with the existence of a tenancy. Disclaimer of the landlord's **title** is analogous to repudiation of a contract. The rule is of feudal origin; the courts are not anxious to extend it and so any

> breach of this condition must be clear and unambiguous. Hill and Redman in Law of Landlord and Tenant (17th Edn., para 382, at pp. 445-446) dealing with "acts which prejudice lessor's **title**"

19.2 In Maria Margarida Sequeria Fernandes v. Erasmo Jack de Sequeria, 2012 (3) SCALE 550, the Supreme Court held that the person resisting a claim for recovery of possession or claiming a right to continue in possession has to establish that he has such a right. The observations of the Supreme Court are as under:-

> "66. A **title** suit for possession has two parts - first, adjudication of **title**, and second, adjudication of possession. If the **title dispute** is removed and the **title** is established in one or the other, then, in effect, it becomes a suit for ejectment where the defendant must plead and prove why he must not be ejected.

26.5 A suit for ejectment is different from a **title** suit for possession against a trespasser. In a suit for possession against a trespasser, **title** can be in **dispute** but in a suit for ejectment against an erstwhile tenant, ordinarily there is no **dispute** of **title** as the tenant is estopped from denying the landlord‟s **title** under Section 116 of the Indian Evidence Act. The **dispute** is generally on two counts; one, about the assent to continue after the expiry of the fixed term lease by efflux of time and second, about the valid termination in case of monthly lease. The tenant resisting the claim for possession has to plead with sufficiently detailed pleadings, particulars and documents why he must not be ejected and what right he has to continue in possession. There is really nothing else to be tried in such a suit. A suit of this nature can ordinarily be decided on first hearing itself either on the pleadings and the documents or, if need be, by examining the parties under Order X of the Code of Civil Procedure or Section 165 of the Indian Evidence Act.

27.5 The appellant‟s plea **disputing** the **title** of the respondent is barred by Section 116 of the Indian Evidence Act. The appellant is estopped from **disputing** the **title** of a landlord so long as he is in possession. As such, the objection of the appellant as to the **title** of the respondent cannot be looked into.

27.6 The appellant‟s lease also stands forfeited under Section 111(g)(2) of the Transfer of Property Act, 1882 on account of renunciation of his character by setting up a **title** in a third person. The effect of renunciation is to bring an end to the relationship of landlord and tenant and the appellant has made itself liable to be evicted on this ground as well.